

Court No. - 33

Case :- WRIT - C No. - 36015 of 2024

Petitioner :- Naeem Beg

Respondent :- Executive Engineer Electircity Urban Distribution Division Ivth Dakshinanchal, Electircity Distribution Corporation Ltd., And Another

Counsel for Petitioner :- Sudhir Dixit,Utkarsh Dixit

Counsel for Respondent :- Alok Mishra

Hon'ble Vikram D. Chauhan,J.

Sri Alok Mishra, Advocate, is present on behalf of the respondent no. 1.

Issue notice to the respondent no. 2.

Learned counsel for the respondent no. 1 prays for and is granted three weeks' time to file counter affidavit.

List this case on 13.12.2024.

Learned counsel for the petitioner submits that petitioner is the owner of the property in question and the Permanent Lok Adalat by the impugned order has directed for grant of electricity connection to the respondent no. 2 without hearing the original owner.

Prima facie, this Court is of the view that once under the U.P. Electricity Supply Code, 2005 connection can be granted by submission of the indemnity bond then the consent from the petitioner may not be necessary. However, it is also not in dispute between the parties that prior also there was an electricity connection of the shop in question which was disconnected. A civil suit is already pending for ejection against the respondent no. 2 which, as per the impugned judgment, has been disclosed.

In view of the aforesaid, any electricity connection granted in pursuance to the impugned order shall abide by the final decision of this Court. The respondent no. 2 would not be entitled to claim any benefit arising out of the electricity connection in the pending civil suit.

Order Date :- 5.11.2024

K.K. Maurya